

COUNCIL FOR THE CITY OF SCRANTON

HELD:

Tuesday, December 16th, 2025

LOCATION:

COUNCIL CHAMBERS

Maria McCool, RPR
Official Court Reporter

C O U N C I L M E M B E R S :

GERALD SMURL - PRESIDENT

MARK MCANDREW, VICE PRESIDENT

JESSICA ROTHCHILD

THOMAS SCHUSTER

WILLIAM KING

FRANK VOLDENBERG, CITY CLERK

KATHY CARRERA, ASSISTANT CITY CLERK

THOMAS GILBRIDE, ESQ., COUNCIL SOLICITOR

1 (Pledge of Allegiance.)

2
3 MR. SMURL: Please remain standing
4 for a moment of silent reflection for our
5 service men and women throughout the world and
6 for those who have passed away in our
7 community, especially the two residents of the
8 Jermyn apartment Joe Farrell -- Ferraro and
9 Scranton Firefighter John McGowan. Thank you.

10 MR. MCANDREW: I'd like to make a
11 motion to take from the table Resolution No.
12 301 of 2025.

13 DR. ROTHCHILD: Second.

14 MR. SMURL: There's a motion on the
15 floor and a second to take from the table
16 Resolution No. 301, 2025 and place it in
17 Seventh Order for a final vote. Do you want to
18 do roll call first, please?

19 MS. HERBSTER: Mr. King.

20 MR. KING: Yes.

21 MS. HERBSTER: Mr. Schuster.

22 MR. SCHUSTER: Present.

23 MS. HERBSTER: Dr. Rothchild.

24 DR. ROTHCHILD: Here.

25 MS. HERBSTER: Mr. McAndrew.

1 MR. MCANDREW: Present.

2 MS. HERBSTER: Mr. Smurl.

3 MR. SMURL: Here. So we had a
4 motion and a second. So there's a motion on
5 the floor and a second to take from the table
6 Resolution 301, 2025 and then place it in
7 Seventh Order for a final vote.

8 This resolution is the appointment
9 of Anna Campbell to the Scranton Housing
10 Authority Board. All those in favor signify by
11 saying aye.

12 MR. KING: Aye.

13 MR. SCHUSTER: Aye.

14 DR. ROTHCHILD: Aye.

15 MR. SMURL: Aye. Opposed? The ayes
16 have it --

17 MR. MCANDREW: No.

18 MR. SMURL: Sorry, the ayes have it
19 and so moved.

20 MR. SCHUSTER: Hang on. What
21 happened there? Did we just make a -- did we
22 vote to take it off the table?

23 MR. SMURL: Correct.

24 MR. SCHUSTER: No.

25 MR. MCANDREW: I make a motion to

1 take from the table Resolution No. 307 of 2025.

2 DR. ROTHCHILD: Second.

3 MR. SMURL: There's a motion on the
4 floor and a second to take from the table
5 Resolution No. 307, 2025 and place it into
6 Seventh Order for a final vote. This
7 resolution is the HARB denial for the
8 certificate of appropriateness for the
9 installation of a fence 301-303 Penn Avenue.
10 All those in favor signify by saying aye.

11 MR. KING: Aye.

12 MR. SCHUSTER: Aye.

13 DR. ROTHCHILD: Aye.

14 MR. MCANDREW: Aye.

15 MR. SMURL: Aye. Opposed? The ayes
16 have it and so moved.

17 MR. MCANDREW: I make another a
18 motion to take from the table Resolution No.
19 299 of 2025.

20 DR. ROTHCHILD: Second.

21 MR. SMURL: There's a motion on the
22 floor and a second to take from the table
23 Resolution No. 299, 2025 and place it in
24 Seventh Order for a final vote. This
25 resolution is appointment of Melinda Krokus as

1 an alternative member of the Environmental
2 Advisory Council. All those in favor signify
3 by saying aye.

4 MR. KING: Aye.

5 MR. SCHUSTER: Aye.

6 DR. ROTHCHILD: Aye.

7 MR. MCANDREW: Aye.

8 MR. SMURL: Aye. Opposed? The ayes
9 have it and so moved.

10 There will be a motion this evening
11 to suspend the rules to move 5-B to Seventh
12 Order for a final vote. Anyone who would like
13 to speak on this piece of legislation may do so
14 in Fourth Order Citizens Participation.
15 Dispense with the reading of the minutes.

16 MR. VOLDENBERG: THIRD ORDER.

17 3.A. CORRESPONDENCE DATED DECEMBER
18 8, 2025, FROM CITY BUSINESS ADMINISTRATION,
19 REGARDING LICENSING, INSPECTION & PERMITS
20 DEPARTMENT AND PARKS & RECREATION DEPARTMENT
21 BUDGET TRANSFERS.

22 3.B. NOVEMBER 2025 LICENSES &
23 PERMITS REPORT AND 2025 CUMULATIVE LICENSES;
24 PERMITS REPORT RECEIVED DECEMBER 9, 2025.

25 3.C. CORRESPONDENCE DATED DECEMBER

1 9, 2025, FROM CITY BUSINESS ADMINISTRATION,
2 REGARDING ARPA BUDGET TRANSFERS.

3 3.D. CORRESPONDENCE DATED DECEMBER
4 10, 2025, FROM CITY BUSINESS ADMINISTRATION,
5 REGARDING DEPARTMENT OF PUBLIC WORKS AND
6 LICENSING, INSPECTION & PERMITS DEPARTMENT
7 BUDGET TRANSFERS.

8 3.E. SINGLE TAX OFFICE CITY FUNDS
9 DISTRIBUTED COMPARISON REPORT FOR YEAR-TO-DATE
10 DECEMBER 5, 2025 AND YEAR-TO-YEAR COMPARISON
11 REPORT FOR DECEMBER 6, 2024 THROUGH DECEMBER 5,
12 2025.

13 3.F. CORRESPONDENCE DATED DECEMBER
14 11, 2025, FROM CITY BUSINESS ADMINISTRATION,
15 REGARDING HUMAN RESOURCES DEPARTMENT BUDGET
16 TRANSFER.

17 3.G. CONTROLLER'S REPORT FOR THE
18 MONTH ENDING NOVEMBER 30, 2025.

19 MR. SMURL: Are there any comments
20 on any of the Third Order items?

21 MR. SCHUSTER: The only comment I
22 have on Third Order item is in regards to 3-C.
23 So can we just ask if our ARPA allocations, are
24 they being allocated 100 percent, are there any
25 claw backs that are occurring or are we

1 utilizing, allocating all of those funds?

2 MR. VOLDENBERG: I'll ask those
3 questions.

4 MR. SCHUSTER: Thank you. Yeah, the
5 last update we had, they stated that they were.
6 I just want to -- if we could get an update on
7 that.

8 MR. VOLDENBERG: I will.

9 MR. SCHUSTER: Thank you.

10 MR. SMURL: Anyone else? If not,
11 received and filed. Do any Council members
12 have any announcements at this time?

13 DR. ROTHCHILD: Yes, I do. First, I
14 just want to wish people a happy Hanukkah if
15 they celebrate. Tonight's the third night of
16 it. It goes for eight nights. So it will be
17 until next Monday. And also Merry Christmas,
18 to those who celebrate Christmas and happy
19 Kwanzaa for those who celebrate Kwanza. So I
20 hope everyone has a wonderful holiday season.

21 I did also want to say that, just
22 give me condolences to the family and loved
23 ones of the victims from the assault that
24 happened at the Jermyn apartments. I think
25 we're all really shocked that that had

1 happened. And I feel terrible to have heard
2 that that happened and just very sad events.

3 And then I hope the person who had
4 survived is able to recover from it. That's
5 all that I have. Thank you.

6 MR. SMURL: Thank you. Anyone else?

7 MR. SCHUSTER: Yeah, I have one
8 announcement. The department of recycling just
9 wanted everyone to know that the recycling
10 calendars for 2026 are in the mail and are
11 headed towards our residents.

12 MR. MCANDREW: I would also like to
13 wish everyone a very Merry Christmas, Happy
14 Hanukkah, happy Kwanzaa and definitely a happy
15 and healthy new year. Two events that are
16 coming up, so the Victor Alfieri Society's
17 monthly dinner is early this year because of
18 the holiday.

19 So they wanted me to announce that
20 they will having this Thursday, December 18th
21 from 11:30 a.m. to 1 p.m., eggplant rollantini
22 which is a lot of people's favorites over there
23 or pasta and meatballs. It's \$12 for members,
24 \$14 for nonmembers.

25 And also, West Scranton High School,

1 this is going to be their second year of Deck
2 the Halls at West Scranton High School. Come
3 out and support their positive behavioral team.
4 It's a great event, this Saturday, December
5 20th from 9 to 1. Parents are free, children
6 tickets are \$5. Children under 3 are \$3.

7 You know, it will help you get in
8 the holiday spirit. They have interactive
9 theater, face painting, pictures with Santa,
10 games, cookies, hot cocoa. I'm very proud of
11 my students. They made a bunch of cookies I
12 dropped off today for this event and for
13 another event that they are having there. So
14 if you can, support this. It's a great event.
15 And that's all I have.

16 MR. SMURL: Thank you. There's one
17 more. Bob Bolus's 32nd annual Christmas
18 dinner, December 25th from noon until 6 p.m.,
19 at All Saints Academy in West Scranton. It's
20 1425 Jackson Street.

21 MR. VOLDENBERG: FOURTH ORDER.
22 CITIZENS PARTICIPATION.

23 MR. SMURL: First speaker, Joan
24 Hodowanitz.

25 MS. HODOWANITZ: Joan Hodowanitz,

1 Scranton. Since this is the last meeting for
2 2025 and we're in the mood to give thanks, I
3 think we should all pause also and thank our
4 municipal employees, those who we see picking
5 up our garbage or fighting fires or responding
6 to emergencies, the police.

7 Just think of how December, you
8 know, started. It's been so cold and how would
9 you like to be out there 5:00 in the morning
10 with a zero windchill picking up somebody
11 else's garbage or in those conditions fighting
12 a fire or responding to, you know, reports of
13 shots fired.

14 Didn't we just have a 15-year-old
15 child killed in West Scranton? This is a sad
16 way to end the summer. We lost two residents
17 in the Hotel Jerymn and a 15 year old in West
18 Scranton shot with a stolen firearm.

19 So, you know, I mean, people will
20 say, well, you know, they get paid well and
21 they get a lot of benefits that other people
22 don't get. Believe me, if you want to do their
23 job, you should apply for them and then you'll
24 get those benefits because the work is hard and
25 often a thankless task.

1 So my personal thanks to all of
2 those people who keep us safe, who clean our
3 city by picking up our nasty garbage and do all
4 of the other things that most of us don't want
5 to have to do for ourselves and I wish them the
6 best.

7 Speaking of picking up garbage, do
8 we have a contract yet for the DPW?

9 MR. SMURL: Not that I've heard of.

10 MS. HODOWANITZ: Okay, you know,
11 it's going to be one year on December 31st. I
12 suspect that contract is headed for arbitration
13 in the new year. Also, in December of 2026,
14 will be the expiration dates for the union
15 contracts for both police and fire.

16 Last time it took both of them over
17 one year to get new contracts. So don't you
18 think it would be a good idea if when the new
19 year comes around they start working on those
20 two contracts? That way, we could have
21 negotiations going on for police, fire, and DPW
22 simultaneously.

23 But, you know, I mean, those people
24 deserve a contract and they shouldn't have to
25 wait. And the people shouldn't have to pay all

1 of these labor Council fees and arbitration
2 fees and, you know, backpay and everything
3 else. Let's get it done and get it done right
4 this time.

5 Speaking of getting things done
6 right, I think it's a wonderful idea that Doris
7 Koloski is going to be appointed to the Human
8 Relations Committee. It was a sad day when we
9 lost Norma Jeffries to the Philadelphia area.
10 But at least we got Doris, you know, coming in
11 to serve on a commission.

12 We have a lot of very good people in
13 the community who offer their services. So I
14 thank them all. Speaking of services, I looked
15 at the agenda for tomorrow's County
16 Commissioners' meeting. And, of course, on the
17 agenda is the second reading of the budget for
18 2026 which Dave Bulzoni had asked to be delayed
19 until tomorrow because he needed to get his
20 arms around what the projected cost would be
21 for electricity.

22 So I have the legislative cover
23 sheet and you might be surprised to see that
24 thanks to all of these data centers that are
25 raising their ugly heads in Lackawanna County,

1 costs are expect to increase. The county may
2 anticipate a year over year cost increase of
3 approximately 42 percent.

4 So next year they're anticipating
5 the cost for the county to be \$992,000. Now,
6 they got some energy saving projects that
7 they're looking at. And that will bring the
8 increase down to 34 percent. So the next raise
9 will be 1.3 million dollars, which brings us to
10 the city's anticipated electricity cost for
11 next year. It's a flat.

12 Almost \$350,000 for 2025 and it's
13 going to be \$350,000 next year. And if you
14 believe that, I've got a bridge to sell you on
15 Luzerne Street.

16 MR. SMURL: Mike Mancini.

17 MR. MANCINI: Good evening,
18 Scranton. Tonight, things to be thankful for.
19 Thankful to wake up every morning an American.
20 Thankful for every veteran. Those who have
21 served or are serving to ensure our every
22 freedom.

23 I'm thankful for growing up in
24 Scranton. Memories and things that could never
25 be taken away or taken for granted, growing up

1 in West Scranton the oldest of three boys to a
2 single mother and humble beginnings, I had so
3 many amazing memories.

4 I'm thankful for the kindness of our
5 city and its citizens. I'm thankful for
6 friends and family at times of need and when
7 not in need. I'm thankful for our first
8 responders, firefighters, police officers, and
9 our amazing DPW employees who brave the cold
10 weather and serve their city with compassion
11 and resolve.

12 Christmas is next Thursday. The
13 holiday could be tough on people, me included.
14 This past Saturday evening I drove through Nay
15 Aug Park and found the Christmas lights display
16 to be very thoughtful and easy on the eyes.
17 I'm thankful for all the volunteers who took
18 their time throughout the year dedicated to
19 keep our crown jewel and parks in amazing
20 condition, including those on the Recreation
21 Authority and Council President Smurl.

22 I'm thankful for those who work
23 directly for the homeless and stray animals.
24 I'm thankful for those who have attended the
25 Council meeting and those who pay attention to

1 how our local process works and affects us
2 daily, good, bad or indifferent.

3 I'm thankful for friendships made in
4 these very chambers. I'm thankful that this
5 will be our last meeting of our current
6 Council. The days of rubber stamps by Manny,
7 Moe and Jess will be over. I'm thankful for
8 next year's Council and will hold the Mayor
9 responsible for her actions and her lack of
10 detail regarding the topic which is our
11 requirement of those five chairs.

12 I'm thankful that we have an amazing
13 district attorney committed to our every safety
14 concern. Our concern is that our police
15 department is not operating properly. The core
16 organizational structure was changed disrupting
17 major components, primarily our detectives
18 division.

19 I would be thankful if the new
20 Council would investigate the need for a study
21 to address the complexity of our police
22 department. The recent police and first
23 responder calls are a reminder of how our
24 safety is important to everyone.

25 I would be thankful if our Mayor,

1 Business Administrator, Police Chief, head of
2 detectives, our District Attorney, Chief of
3 Detectives and Mr. McAndrew would meet with me
4 about my concerns.

5 I feel there are steps that are
6 missing when it comes to opioid related deaths
7 and drug activity in our city. Placing the
8 right people in the room for the right reasons
9 will have the right results. We need solutions
10 to our current climate. We need to have the
11 stigma that our Scranton Police Department is
12 the best in the area.

13 Think twice before you choose to do
14 something once. Mr. McAndrew, I believe that
15 you should be there, not only as a
16 representative of Council but also as a teacher
17 and a grandparent. Like myself, you care about
18 our future.

19 Personally, I could understand the
20 frustration with the administration when it
21 comes to most of your questions. Years --
22 almost here next year. Soon you will demand
23 answers, something we will all be grateful
24 for.

25 I would like to be thankful if the

1 Mayor would make the unhoused task force
2 meetings public. Once again, with input from
3 those in attendance. I would be thankful if
4 the Mayor would place a monthly calendar on the
5 city website regarding days, times, and
6 locations of every authority, board, and
7 commission meeting. Since transparency is so
8 scrutinized, my recommendation is a fair
9 request.

10 Gratitude could transform common
11 days into Thanksgivings, turn routine jobs into
12 joy and change ordinary opportunities into
13 blessings, William Arthur Ward. I would like
14 to wish everybody a blessed holiday and a safe
15 start to the new year. Good evening, Scranton.

16 MR. SMURL: Thank you. Mark
17 Scarinci.

18 MR. SCARINCI: Pleasant good
19 evening, Council, Mark Scarinci, West Side. I
20 want to start by thanking the City of Scranton
21 residents for their civilized community because
22 I come from Las Vegas, east Las Vegas two years
23 ago.

24 And let me tell you, there's
25 security bars on the windows, security bars on

1 the front door, high perimeter fences 4 or 5
2 feet high, Doberman's in the front yard. We
3 don't have that kind of stuff over here.
4 There's no graffiti. There's no sneakers
5 hanging down from the cable wires. This is
6 paradise as close as it could be. So thank
7 you, Scranton, for being civilized.

8 Now, the real reason why I came over
9 here is you see this picture, Council, this
10 earthrise. Remember earth rise? This is taken
11 on the Apollo 8, 60-some years ago. I was a
12 little boy at the time. I could remember the
13 need of the post office stamp where you
14 could -- when I was a little boy, we would have
15 pen pals.

16 And I would put it on the stamp.
17 And it was 6 cents at the time. That photo of
18 earthrise has been diminished because we need a
19 new image. We need a new earthrise and here it
20 is, Council. Without further ado, I present to
21 you St. Nicholas of Myra.

22 This is it, St. Nicholas of Myra
23 also known as Santa Clause, which just happened
24 to be me. I spent last year at this time 27
25 days in Saratoga Springs, New York at Wilton

1 Mall. And I gave hundreds of children very
2 nice memories. And it was a very rewarding
3 experience with Cherry Hill programs right
4 there at the Viewmont Mall.

5 Now, I also want to point out to you
6 this picture. There's the picture of the
7 blessed Virgin Mary and us Catholics find that
8 a very sacred image. When I was getting these
9 pictures taken -- developed, the lady said it's
10 better if it's backlit.

11 You could see it better because I
12 thought it came out too dark. And I got to
13 thinking what a wonderful idea that is. How
14 can I backlight this photograph? And so I
15 thought about it, and I did it. And here it
16 is, Council. You could put it on your cell
17 phone. Right here and it comes out really nice
18 with the season of Christmas upon us.

19 So what I want to do is, I want to
20 spread that joy of that picture to all the
21 world. So right now if you have your camera,
22 you could take a snapshot with your camera.
23 And this is it. My name is Mark Scarinci. I'm
24 right there on Facebook. You could see my
25 picture and it looks right like that.

1 And I want you who are distressed,
2 who are feeling mental issues, I want you to
3 download that picture. And I want you to put
4 it on your cell phone on the lock screen just
5 like that because I'll tell you what, this
6 picture has healing properties.

7 There are many stories I could tell
8 you as a Santa Claus. But I'm going to leave
9 you with one. As sure as a Hollywood script,
10 there was this 19-year-old girl with tears in
11 her eyes and I said, "What's the matter? And
12 she said to me, "Santa, can I have a hug?

13 And I said, "Of course you could
14 have a hug." And so when we embraced, those
15 tears of sadness turned to joy. Those frowns
16 turned upside down with a smile. And I know
17 the reason why, Council, because when you see
18 that decorations and you see all the -- hear
19 all the music, the trick is this is this
20 peppermint oil.

21 And so I would get this peppermint
22 oil and I would make a little cologne and I
23 spray it and I would smell like peppermint
24 candy. And people would say you smell like
25 peppermint candy when I sit next to them. I'd

1 say, yeah, that's the point.

2 And so when she smelled that
3 peppermint candy and saw those decorations,
4 that embrace turned her right around. So I
5 wanted to tell you and the world that if you
6 are feeling distressed, you follow my
7 instructions. Thank you, Council, for your
8 actual time.

9 MR. SMURL: Les Spindler.

10 MR. SPINDLER: Good evening,
11 Council, Les Spindler, city resident and
12 homeowner. I want to wish all of my friends
13 and family of the Jewish faith a happy Hanukkah
14 and I send my thoughts and prayers are in
15 Australia for all of those people that lost
16 their lives. What a terrible thing celebrating
17 a wonderful holiday and they had their lives
18 snuffed out, just terrible.

19 Okay, moving on. It's a dead issue,
20 but last week, that vote to give Geisinger
21 their way was ridiculous. Three of you, you
22 know who you are, neither one of you has a mind
23 of your own. You didn't listen the last three,
24 four weeks to all the people coming up here
25 saying how that will inconvenience their lives,

1 their neighborhood.

2 It's just terrible. And,
3 Councilwoman Rothchild, you betrayed all of
4 your neighbors in that area. You didn't even
5 have the guts to come here last week and look
6 them in the face and vote no or and vote yes I
7 mean.

8 You should have voted no. You
9 pretend to be a champion for the Hill Section
10 but that's bull. All you do is listen to what
11 the Mayor says. That's going to change next
12 month when we have a new Council.

13 Next thing, 5-B, what is that? New
14 development in 1900 Dorothy Street?

15 MR. SMURL: It's for the sewer
16 connection. It's for the Missy Little League.

17 MR. SPINDLER: Oh, okay, well,
18 that's been done already.

19 MR. SMURL: No, it's not done.

20 MR. SCHUSTER: They put a bathroom
21 in that new building that's there. It's a
22 connection into the sewer.

23 MR. SPINDLER: Batting cages are
24 done. It's all -- it's all done. Rossi Rooter
25 was there doing all that plumbing. All right.

1 That's all I have. I want to wish everybody a
2 happy healthy new year and Merry Christmas and
3 see you next year.

4 MR. SMURL: Les Spindler -- I'm
5 sorry, Lee Morgan. Sorry, Les.

6 MR. MORGAN: Good evening, Council,
7 Lee Morgan. You know, today I was going to
8 talk about my litigation with ECTV. But, you
9 know, with the things that are happening here
10 and in the world, I thought maybe I'd change
11 what I was going to say.

12 And, you know, being a person who
13 grew up in this city, I'm just really shocked
14 the way things are really occurring here. I
15 have friends I work with and they always talk
16 about the deplorable conditions of the city and
17 all the crime.

18 And I just think that when you get
19 people hacked to death in their residence,
20 okay, or you're a child and you're walking down
21 the street and you get shot -- and then I add
22 it to all the other things that people I work
23 with talk about that they find on the internet
24 about the city about crime and the things that
25 are going on here.

1 You know, it's time to take a real
2 good hard look around. You know, the hospital
3 project is something totally different because
4 that's an antiquated building. And there is no
5 way to make that useful. I would just like to
6 add that here.

7 So that vote was just a detriment to
8 the residents of the city no matter who voted
9 for it or what they did. But, you know, you
10 take a look at what's going on. I think people
11 should go in the internet and look up the name
12 Franck Zuma, F-R-A-N-C-K-Z-U-M-A. He's a
13 Nigerian guy. He talks about America.

14 He talks about what's going on in
15 our country, talks about what's going on in the
16 world. You know, when you look at the things
17 that are going on in this world like Les was
18 talking about the murder of the Jewish people
19 in Australia and you look at the crime all over
20 the world and then you look at the president we
21 have and that we had, Biden.

22 And you see what's happening to
23 America, it's been going on for -- since the
24 60s. It's just been getting worse and worse
25 and worse.

1 You know, when you take a look at
2 people that immigrate into your country, you
3 have to see where they came from and how they
4 acted where they came because I pay a lot of
5 attention about things that are going on in the
6 country.

7 You know, people -- I don't think
8 the police here are prepared here for what's
9 going to happen in this country. I know
10 they're not prepared for what's going on in the
11 rest of our country. They're finding people
12 in plastic barrels with bleach poured on them,
13 dead, women, young girls.

14 They're murdering people across our
15 whole country everywhere, not just in some
16 places. They just got done arresting people in
17 Texas. But the people in Australia are totally
18 a different thing. They were radicalized
19 Islamic militants.

20 And we have them everywhere in our
21 country. I had a friend that I worked with at
22 work that was an Afghanistan. And when Joe
23 Biden left the border open, he said watch out
24 what's going to come. I think the FBI's
25 working overtime. I see what's going on here.

1 You know, when I look at the murder
2 at the Hotel Jermyn where people are hacked to
3 death with a machete, that's just not something
4 that ever happened in our city at one time.

5 And we just have elected officials
6 that are Democrats that are killing our
7 country. It's just amazing and you could see
8 it. And you see what's going on all over the
9 world. They are actually hunting Jewish people
10 down everywhere even in our own country not
11 letting them go to classes, not letting them
12 move around freely.

13 You know, and you take a look at
14 what's going on in some of our cities where
15 they are trying to enact sharia law. I don't
16 know if women are ready for sharia law in this
17 country or anybody else for that matter. Our
18 whole society is breaking down because we've
19 allowed people into our country that don't
20 share our values.

21 And then we elect people that
22 locking us out of the halls of government and
23 are just totally troubled by anything we say.
24 But you know what, the worst is yet to come.
25 And we have to thank all the people we elect.

1 You know, you should ask the Mayor to come up
2 here and explain to the residents how she
3 allowed the city to get like it is and then ask
4 yourself that question. Thank you.

5 MR. SMURL: Gene McDonough.

6 MR. MCDONOUGH: Gene McDonough, City
7 of Scranton resident. I too am here about the
8 CMC and the vote last week. To me, it was
9 just -- it was a travesty what happened. It
10 was an assault. You bypassed the law. And to
11 me, all politics are local.

12 And what I saw last week was
13 basically an assault on democracy. You guys,
14 you didn't listen to the residents. You
15 listened to the corporation, a small group of
16 people, most of who don't live in the area.
17 The president lives 45 minutes away.

18 And that's who you listened to. You
19 listened to our state rep. You listened to our
20 outside politicians who are supposed to
21 represent the area, not Scranton. You were
22 elected to represent Scranton. To me, it was
23 like Goliath versus David. And we just got
24 crushed.

25 Geisinger's motto, we treat everyone

1 as we would like to be treated. I don't think
2 that happened last week. Now, I walked away
3 here -- I walked away from the meeting last
4 week and thought that we at least had a chance.

5 I was pretty disappointed when I saw
6 people with prepared speeches. That means we
7 didn't have a chance. I found out about this
8 late and I know there was some meetings held.

9 But what I saw last week was
10 basically bypassed -- what everybody's been
11 saying. And I started getting mad at you guys.
12 And I know you guys. I know you guys
13 personally. I work with you guys. And I know
14 you're good people. I know you care about it.

15 And I thought, okay, don't get mad
16 at the people. Look at the process. Where did
17 the process break down? This is what I do for
18 a living. I step back and I look at the
19 process. And I had an epiphany.

20 We're doing -- and somebody just
21 mentioned for the last 50 years we've been
22 handing more and more power over to
23 corporations. And that's what I saw happen
24 last week.

25 Government by the people, for the

1 people. Government of the people, by the
2 people for the people. Definition of people is
3 a citizen, not a corporation. Scholarly
4 analysis of what that meant, elected
5 representatives are in place to represent the
6 common man.

7 I'll add not the corporations and
8 the oligarchs. I hear time and time again our
9 elected representatives are doing business of
10 the people. You are supposed to be
11 representing the people, not just doing the
12 business of the people.

13 You are supposed to be listening to
14 us. Voters don't feel heard anymore. We see
15 the condition, not just Scranton's in but the
16 nation. And voters don't feel heard.
17 Corporations and the wealthy play by different
18 rules.

19 We see it time and time and time
20 again. And last week was a perfect example.
21 That corporation made 237 million dollars.
22 They can't build elsewhere? They can't build
23 in a nonresidential area? Who are you guys
24 elected to represent? You were elected to
25 represent the city, not the county, the city.

1 What I heard last week was you were
2 representing the county. I heard that from two
3 different representatives up there. While I
4 appreciate it, again, you guys care and you're
5 looking at the big picture.

6 You were elected to represent us,
7 not the county. We have representatives over
8 in another building to represent the county. I
9 don't know how many meetings you had with
10 the -- how many meetings you had with the local
11 people. But I heard it was, like, two or
12 three.

13 Was there any outreach done to the
14 people who are make \$21,000 a year in the area?
15 Most of the people that are showing up to these
16 meetings -- we're doing okay for ourselves.
17 Did we reach out to the people who aren't and
18 what they're going to do when they lose their
19 homes. And they have bad credit and can't find
20 another house.

21 Did we think about those people?
22 Did we make any promises? Are there -- you
23 know, were there meeting minutes taken for
24 these meetings with Geisinger? I don't know.
25 I hope there were because I'm going to request

1 them. I heard there was an agreement to 75
2 feet.

3 I don't know if it's in writing. By
4 the sounds of it, it wasn't. I don't know if
5 it was. I apologize if it is. But they
6 haven't kept a promise yet to us. The
7 helicopters flying over our neighborhood. They
8 bought properties when they said they are not
9 going to and they continue to develop when they
10 said they're not going to.

11 We made what sounds like a 100 year
12 agreement on a handshake with people who aren't
13 going to be here in 100 years. Jerry, you're a
14 businessman. You don't do that in business.
15 Again, I want to thank you guys. And you could
16 see I'm upset about this. It really frustrated
17 me to see what happened last week.

18 I don't like coming here. I don't
19 like coming and doing public speaking. But I
20 do want to thank you guys for being here. And
21 again, I know you guys are good people. I know
22 the Mayor, in my opinion, I'm going to ruffle
23 some feathers here. Personally I think the
24 Mayor is one of the best mayors we had in a
25 long time.

1 I think she's got a bigger picture.
2 I like her for future representatives. I think
3 her and Eileen are a great team. I think
4 they've done a lot of good. And again, thank
5 you all. Merry Christmas. Happy holidays.
6 Stay safe.

7 MR. SMURL: Thank you. That is all
8 for our sign-in sheet. Anyone else wish to
9 address Council?

10 MR. COYNE: Tom Coyne, Minooka. And
11 again, people are hungry at the holidays. We
12 can't forget our obligation to our other man or
13 maybe we can, but we shouldn't. Now, there was
14 a woman killed up on Harrison and Mulberry.
15 Two people struck while trying to cross the
16 road.

17 There's a light at that
18 intersection. Maybe we should change it to a
19 stop sign since stop signs are safer. Pull
20 down the stop light up there near the park and
21 pull them down and put up stop signs because we
22 all know that stop signs will be more
23 effective.

24 We're not going to change it up
25 there. I don't see how Center City is going to

1 be safer with stop signs. We need to apply it
2 in Center City, we need to apply it everywhere
3 or it's just not logical. Or maybe that's the
4 point of what I'm saying that blowing down stop
5 signs -- blowing stop lights for stop signs
6 isn't logical and it's not a solution.

7 I was going to talk again about the
8 departing and it was mentioned here about the
9 departing people. Last week Mr. King was
10 yelling about it's my vote, my vote. When I'm
11 up here I'm going to do my vote. It's not his
12 vote. It's the people's vote.

13 He's a representative of the people.
14 We're a representative government. What's
15 given to him is the authority to vote, not on
16 his own feelings; but for the betterment of the
17 community and the betterment of the people he
18 represents. I understand he might think that
19 is the best representation for the people he
20 represents.

21 But it's never my vote. I am voting
22 for the people I represent as best as I can.
23 When you say it's my vote, you disenfranchise
24 everyone you serve. Dr. Rothchild, I was not
25 surprised whatsoever. Last time it came up

1 before Council for CMC Geisinger's change you
2 were on the bandwagon for this change all
3 along.

4 And at the last minute you flipped.
5 And the only reason you flipped as I said
6 beforehand was it was three weeks before the
7 election. Then suddenly, everything was in
8 Geisinger flipped over to a no vote. It wasn't
9 surprising because after a five or six minute
10 explanation on the phone which you always do,
11 you always give all the excuses in the world
12 and then say yes and let it go by.

13 You ran the people over with your
14 vote. And you ran over your own community.
15 But I guess that's theirs to blame because they
16 put you back in office after you did this last
17 time.

18 I hope the people in Scranton have a
19 good holiday season. It's been a tough year
20 for a number of things, for food, for water
21 bills, for electric, for public serve -- for
22 the homeless. We've got a lot of things on our
23 plate going forward.

24 And we need to take that kindness
25 that we have and work it a little bit better,

1 not behind closed doors as part of an
2 unsheltered -- because they're not unsheltered.
3 They're homeless.

4 They're sitting on cardboard boxes
5 below a bridge. Unsheltered is the dog in your
6 doghouse in your backyard. But sometimes they
7 are fed and taken care of better than we take
8 care of our own homeless.

9 Now, before my section here ends,
10 I'm going talk about this HARB vote that is
11 coming before you. It's invalid. Three of the
12 five members of the HARB Board aren't allowed
13 to vote, aren't allowed to participate. They
14 did. They voted on this. That is three out of
15 five that voted on this who aren't allowed to.

16 When there are three people who
17 can't vote on a five member board, there is no
18 quorum. What they sent to you is not legally
19 binding because two people are not a quorum if
20 the other three can't participate. And there
21 were no alternatives there. So whatever your
22 vote on it, is absolutely useless because it's
23 an illegitimate vote.

24 And anything that comes out of HARB
25 since May 1st is illegitimate because they have

1 never had from that point on a quorum. Good
2 night.

3 MR. ARGENTA: Good evening, Council,
4 Virgil Argenta. I would like to discuss the
5 pressing issue that affects us all,
6 homelessness in Scranton. Each morning as I
7 travel to church shortly after 6 a.m., I
8 observe firsthand the challenges facing our
9 community.

10 Individuals are often seen gathering
11 on sidewalks while tents are discreetly
12 positioned out of public view. Others walk the
13 streets carrying their belongings and
14 backpacks, carts or bags seeking food or a safe
15 place to rest.

16 A clear illustration of the
17 disparity between them experiencing some
18 hardship and those who enjoy stability. My son
19 who serves as a police officer in another state
20 has relayed many heartbreaking accounts from
21 this overnight shifts involving individuals
22 living unsheltered.

23 These experiences underscore the
24 people affected are not merely statistics but
25 they're members of families. They're mothers,

1 fathers, siblings, children who are the
2 deserving of empathy and assistance
3 particularly with the holiday season
4 approaching.

5 In previous years, Scranton was home
6 to several 24 hour establishments such as Tony
7 Hardings, the Glider, Chick's Diner, the Waffle
8 House, Gabe's Waco Diner that served as
9 important community spaces providing
10 individuals who had nowhere to go with a
11 welcoming environment to socialize, find warmth
12 and foster connections.

13 Currently we have an unhoused task
14 force that operates privately. So secretively
15 that even its own members are often unaware of
16 when and where meetings are held or what the
17 agenda includes. Strangely, this organization
18 believes it is acceptable to keep everything
19 closed off excluding the public from attending
20 or even offering ideas, suggestions money,
21 help, support.

22 There may be concerns that public
23 participation could introduce innovative
24 solutions with meaningful impact. You have no
25 idea what some people in this room, what they

1 own, who they are or what they're connected to
2 and how we can help because we're private
3 people.

4 For example, what if we're to
5 propose establishing a shared service model
6 where the school district could utilize one of
7 our garbage trucks while in exchange, we might
8 have access to a school gymnasium or an
9 unhoused school building that's not being used
10 for shelter purposes?

11 Additionally, the county could
12 coordinate with Colts Bus Service to transport
13 the unhoused individuals to the designated
14 location allowing that unhoused task force to
15 maintain operational oversight and the unhoused
16 task force could even take credit for this
17 idea.

18 Ultimately as taxpayers, we are the
19 supporters of the city, county, and schools.
20 We're the taxpayers. We're the investors. It
21 is reasonable for the public to request
22 representation in these discussions. And
23 that's what I'm requesting, a seat at the
24 table.

25 It would allow the city, county,

1 school district to work together for a
2 worthwhile cause, show us how much they really
3 care about homelessness in our community.
4 Addressing homelessness requires community wide
5 commitment.

6 I encourage you to support this
7 initiative so that we develop a practical plan
8 and ensure everyone has at least temporary
9 shelter in cold weather like you all do.

10 We have warnings advising people to
11 keep their pets indoors when it's cold. And I
12 completely agree with that 1,000 percent. So
13 should we not extend that same courtesy and
14 care to human beings as well?

15 Let this sink in, Council. Give
16 this consideration. Whoever is on that
17 unhoused task force, bring this to your private
18 meeting. Have a Merry Christmas.

19 MR. SMURL: Thank you. Anyone else?

20 MS. KOLOSKI: Good evening, Council,
21 Doris Koloski, Hill Section resident. Okay,
22 everything that Mr. Argenta that said about the
23 homeless, I think hopefully they will take that
24 into consideration because that's a pretty good
25 idea.

1 And being that the county is
2 involved with the homeless, maybe they could
3 use that county bus for transportation also
4 that takes people to doctors' appointments.
5 All right. I'm here to talk about the
6 hospital.

7 First I want to say, Mr. Smurl, I'm
8 glad you said on WBRE today that you didn't
9 want a hundred foot garage in your
10 neighborhood. I'm glad you acknowledged that.
11 And, Dr. Rothchild, I'm glad you're better in
12 your attendance today.

13 We have a concern as the neighbors
14 after last week where you voted to give the
15 hospital unfettered desire to do whatever they
16 want by changing the zoning and not having them
17 go to variance. And we want our seat at the
18 table. That's what I'm here about tonight.

19 The hospital said they would take
20 into consideration, they would have the
21 neighbors have a seat at the table while
22 they're making their plans out. We want you to
23 know that the hospital, yes, it's a concern for
24 the whole neighbor for healthcare.

25 But for the aesthetics and for what

1 the plans are that are going to be done for the
2 hospital, it's really up to the neighbors that
3 are going to be looking at that every day. We
4 should have a seat at the table. And we want
5 you to know that the Hill Neighborhood
6 Association does not represent us.

7 The President of the Hill
8 Neighborhood Association, Brian Grassi went on
9 Facebook calling us crybabies, morons and a few
10 other things. He posted boxes of tissues with
11 the things saying you'll need these when they
12 vote you down.

13 So we don't feel that they are going
14 to represent us. We don't feel the people that
15 don't live in the immediate area where the
16 hospital is building should have that seat at
17 the table to confer with the hospital.

18 And I know that the Hill
19 Neighborhood Association is trying to get a
20 committee together to report back to them. We,
21 the Area Park Neighbors, feel that we should
22 have that seat at the table.

23 And people that voted to give the
24 hospital whatever they wanted and have been
25 talking to the hospital since the summer

1 without including the neighbors, should be
2 giving the hospital staff, Mr. Nick Coleman and
3 whoever else is involved to convince them that
4 it has to be somebody in the immediate area who
5 is absolutely affected by this building, not
6 somebody from Quincy Avenue or the six of
7 Wheeler.

8 It should be somebody from Arthur
9 Avenue, somebody from Colfax Avenue in the
10 immediate area, the 200 blocks, the 400 block
11 and possibly the 500 block of Colfax, the 1800
12 block of Vine, anybody that is going to see
13 from their porches what is going to be there,
14 has to have a seat at the table.

15 And that's what I'm here to say.
16 And I feel that you have the hospital's ear and
17 obviously a few of you did. You should be
18 using the hospital's ear to whisper to them
19 that it needs to be somebody from our immediate
20 neighborhood.

21 MR. SMURL: Doris.

22 MS. KOLOSKI: Yes.

23 MR. SMURL: The meeting we had, the
24 meeting with Dr. Rothchild and myself, I had
25 offered while GCMC was there to take anyone and

1 meet with them. That offer still stands. It
2 doesn't go away. No one volunteered. So if
3 you give me a name or call me, and I'll arrange
4 for you --

5 MS. KOLOSKI: You will get a letter
6 with the people's names on it that volunteered
7 from Arthur Avenue. My name is on it for
8 Colfax.

9 MR. SMURL: Okay.

10 MS. KOLOSKI: And everybody at the
11 Council will be getting that letter if you
12 didn't already get it and so will the hospital.
13 So because we don't want people making the
14 decision for what we have to look at that
15 doesn't live anywhere near it.

16 MR. SMURL: That's understandable.

17 MS. KOLOSKI: And I also want to
18 wish all of you a very happy holiday whatever
19 you celebrate and happy, healthy new year.

20 MR. SMURL: Thank you. Anyone else?

21 MR. LITTLE: Hello, Rik Little,
22 Scranton. We're going through very critical
23 times right now at every level, personal, the
24 city, the county, the state, the country,
25 internationally.

1 I was interested tonight to hear
2 about the private meeting between Candice Owens
3 and Erica Kirk because of that whole thing
4 going on is exemplary of everything else that's
5 going on. And a lot of it has to do with the
6 media and the judiciary and especially around
7 Christmastime, Hanukkah time, Ramadan time,
8 religion.

9 I could tell you the thing that
10 happened in Australia was a false flag. I
11 don't know how many people know what false
12 flags are. It's when things are reported that
13 the people behind them is just wrong.

14 And what I see happening in Scranton
15 and this whole thing is representative
16 government. I've often talked about the Home
17 Rule Charter how it takes -- I don't want to
18 say democracy because that word as all been
19 done.

20 But it takes the due process of a
21 constitutional republic just into crazy land,
22 how much our representatives are paid, how much
23 judges are paid and the length of their terms
24 and the way things can -- the due process and
25 questioning any of these decisions.

1 It's a fact that a lot of these
2 judge's decisions partisan and they're
3 administrative. And they -- a complete
4 antithesis of a democratic republic
5 constitutional governance, US Constitution, PA
6 Constitution.

7 As far as the homeless in Scranton
8 goes, I have a great perspective on all of
9 this. I went to the Mayor many years ago and
10 talked with her. She couldn't help me. I
11 applied for the same grants that the people
12 from Scranton Housing Authority applied for and
13 I should have been -- I applied like four
14 times.

15 I got intimate with the Area Agency
16 on Aging. But even before that, I spent every
17 day at the library. I was involved in family
18 court, which I believe is trafficking children
19 basically into single mother households and the
20 whole racial thing all over the place.

21 Remembering when the Mayor first got
22 into office she invited BLM and Intifada come.
23 And I'm looking over all my old footage of all
24 the things that happened then. And it's a
25 critical time right now.

1 As far as the homeless in Scranton
2 is, we got Scranton Housing Authority. And the
3 Mayor is in charge of that on paper. She
4 appoints not only the police depart -- the
5 Police Chief and the Fire Chief, but she
6 appoints the code enforcement and the members
7 of the board of Scranton Housing Authority.

8 And they're like volunteers. They
9 don't get paid nothing. And they go and they
10 vote at these meetings. And everything's been
11 wrong with these meetings, including the
12 wording in the minutes. I've noticed wording
13 in the minutes in the courts and everything.

14 But, you know, they vote. They go
15 in there to vote for the Executive Director who
16 worked for the District Attorney's Office who
17 is hiring all kinds of District Attorney's
18 Offices who's putting SPD people in jail like
19 Herring and Juan {phonetic}.

20 But he was the only person they
21 could vote for when they went. That ain't
22 democracy when there's one person running and
23 that person's making \$183,000 to run it.

24 MR. SMURL: Thank you.

25 MR. VOLDENBERG: FIFTH ORDER. 5-A.

1 MOTIONS.

2 MR. SMURL: Mr. King, do you have
3 any motions or comments?

4 MR. KING: No motions, I just want
5 to wish everyone happy holiday. It's been an
6 honor to serve on Scranton City Council. And I
7 wish the new Council that's going to be seated
8 shortly all the best moving forward for our
9 great city. Thank you.

10 MR. SMURL: Thank you, Mr. King.
11 Mr. Schuster, do you have any motions or
12 comments?

13 MR. SCHUSTER: Yes. So I just want
14 to say thank you to all of our city workers
15 over the past few weeks, especially the
16 Scranton Police Department and Fire Department
17 have been dealing with a lot.

18 Condolences to those families that
19 have lost loved ones and just say Merry
20 Christmas, happy Hanukkah, happy holidays to
21 everyone and Happy New Year. That's all.

22 MR. SMURL: Thank you, Mr. Schuster.
23 Dr. Rothchild, do you have any motions or
24 comments?

25 DR. ROTHCHILD: No, I don't have

1 anything at this time. Thank you.

2 MR. SMURL: Thank you. Mr.
3 McAndrew, do you have any motions or comments?

4 MR. MCANDREW: Yeah, so this being
5 our last meeting for 2025 and we're losing two
6 Council people. And, you know what, it's not
7 easy serving on Council. It's not as easy as
8 everyone thinks.

9 There's a few armchair quarterbacks
10 that maybe won't agree with me, but, you know,
11 we juggle our families. We juggle our
12 full-time jobs. We juggle being on Council
13 trying to find time for everyone. I know
14 people just think we come here once a week and
15 that's it. And that's ridiculous to think that
16 or be accused of that.

17 So a lot of hard work goes into the
18 decisions we make, whether we agree with each
19 other or not. But with that said, I mean, I
20 would like to wish Mr. Smurl and Mr. King, you
21 know, whatever future holds for them, the best
22 for them. And I want to thank them for
23 serving.

24 And serving along side of them was a
25 part of the process. And you'll be missed, I'm

1 sure. So congrat -- you know, not
2 congratulations, but best of luck in all of
3 your endeavors.

4 MR. SMURL: Thank you.

5 MR. MCANDREW: You too, Mr. King --
6 Kinger. I don't think he could hear me over
7 there.

8 DR. ROTHCHILD: I just want to agree
9 with those sentiments. Thank you to Councilman
10 King and Councilman Smurl for your service to
11 the city. And I've appreciated being on
12 Council with the both of you and also wish you
13 the best of luck.

14 MR. SMURL: Thank you.

15 MR. SCHUSTER: I'll also echo those
16 sentiments at this point in time. It was great
17 serving with you, Mr. Smurl and also Mr. King.
18 And I'm sure we'll be bumping into each other
19 in the future and good luck with all of your
20 endeavors.

21 MR. SMURL: Thank you.

22 MR. KING: Thank you. It's been a
23 pleasure working with all of you.

24 MR. SMURL: Absolutely. Well, it
25 is -- this was probably the fastest three years

1 of my life. We did a great deal of work this
2 year together, agreeing or disagreeing. But we
3 never took it out of this place.

4 Our agreements, all of our --
5 everybody's heart went into every decision
6 we've all had. And everybody should know that.
7 Everybody did what they thought at the time was
8 the best for the city or was the best for the
9 city. I think we did great.

10 I think our new Council is going to
11 do very well. And I can't wait for the new
12 Council to get started. And that will come
13 really quickly, but thank you, everyone.
14 Frank.

15 MR. VOLDENBERG: 5-B. FOR
16 INTRODUCTION - A RESOLUTION - RESOLUTION FOR
17 PLAN REVISION FOR NEW LAND DEVELOPMENT LOCATED
18 AT 1900 DOROTHY STREET.

19 MR. SMURL: At this time I'll
20 entertain a motion that Item 5-B be introduced
21 into its proper committee.

22 MR. MCANDREW: So moved.

23 MR. SCHUSTER: Second.

24 MR. SMURL: On the question? All
25 those in favor of introduction signify by

1 saying aye.

2 MR. KING: Aye.

3 MR. SCHUSTER: Aye.

4 DR. ROTHCHILD: Aye.

5 MR. MCANDREW: Aye.

6 MR. SMURL: Aye. Opposed? The ayes
7 have it and so moved.

8 MR. SCHUSTER: I make a motion to
9 suspend the rules and move Item 5-B to Seventh
10 Order for final vote.

11 MR. MCANDREW: Second.

12 MR. SMURL: There's a motion on the
13 floor and a second to move Item 5-B from Fifth
14 Order to Seventh Order for a final vote. On
15 the question? All those in favor of suspending
16 the rules, signify by saying aye.

17 MR. KING: Aye.

18 MR. SCHUSTER: Aye.

19 DR. ROTHCHILD: Aye.

20 MR. MCANDREW: Aye.

21 MR. SMURL: Aye. Opposed? The ayes
22 have it and so moved.

23 MR. VOLDENBERG: SIXTH ORDER. No
24 business at this time.

25 SEVENTH ORDER. 7-A. FOR

1 CONSIDERATION BY THE COMMITTEE ON FINANCE - FOR
2 ADOPTION - FILE OF THE COUNCIL NO. 107, 2025 -
3 LEVYING THE PROPERTY TAX MILLAGE FOR THE YEAR
4 2026.

5 MR. SMURL: What is the
6 recommendation of the Chairperson for the
7 Committee on Finance?

8 MR. KING: As Chairperson for the
9 Committee on Finance, I recommend final passage
10 of this resolution.

11 MR. SCHUSTER: Second.

12 MR. SMURL: On the question? Roll
13 call, please.

14 MS. HERBSTER: Mr. King.

15 MR. KING: Yes.

16 MS. HERBSTER: Mr. Schuster.

17 MR. SCHUSTER: Yes.

18 MS. HERBSTER: Dr. Rothchild.

19 DR. ROTHCHILD: Yes.

20 MS. HERBSTER: Mr. McAndrew.

21 MR. MCANDREW: Yes.

22 MS. HERBSTER: Mr. Smurl.

23 MR. SMURL: Yes. I hereby declare
24 Item 7-A legally and lawfully adopted.

25 MR. VOLDENBERG: 7-B. FOR

1 CONSIDERATION BY THE COMMITTEE ON PUBLIC
2 SAFETY - FOR ADOPTION - FILE OF THE COUNCIL NO.
3 108, 2025 - AMENDING PROVISIONS OF PARKING OR
4 STANDING OF TRUCKS IN RESIDENCE DISTRICTS
5 (ARTICLE XII, CHAPTER 439) TO REGULATE THE
6 PARKING OF DETACHED SEMITRAILERS ON PUBLIC
7 STREETS WITHIN THE CITY OF SCRANTON.

8 MR. SMURL: What is the
9 recommendation of the Chairperson for the
10 Committee on Public Safety?

11 MR. MCANDREW: As Chairperson for
12 the Committee on Public Safety, I recommend
13 final passage of Item 7-B.

14 DR. ROTHCHILD: Second.

15 MR. SMURL: On the question? Roll
16 call, please.

17 MS. HERBSTER: Mr. King.

18 MR. KING: Yes.

19 MS. HERBSTER: Mr. Schuster.

20 MR. SCHUSTER: Yes.

21 MS. HERBSTER: Dr. Rothchild.

22 DR. ROTHCHILD: Yes.

23 MS. HERBSTER: Mr. McAndrew.

24 MR. MCANDREW: Yes.

25 MS. HERBSTER: Mr. Smurl.

1 MR. SMURL: Yes. I hereby declare
2 Item 7-B legally and lawfully adopted.

3 MR. VOLDENBERG: 7-C. FOR
4 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
5 ADOPTION - FILE OF THE COUNCIL NO. 109, 2025 -
6 AMENDING ADMINISTRATIVE PROVISIONS OF THE
7 ARCHITECTURAL AND URBAN DESIGN REVIEW
8 COMMISSION (CHAPTER 18, ARTICLE VII OF CITY
9 CODE) TO IMPROVE IMPLEMENTATION.

10 MR. SMURL: As Chairperson for the
11 Committee on Rules, I recommend final passage
12 of Item 7-C.

13 MR. MCANDREW: Second.

14 MR. SMURL: On the question? Roll
15 call, please.

16 MS. HERBSTER: Mr. King.

17 MR. KING: Yes.

18 MS. HERBSTER: Mr. Schuster.

19 MR. SCHUSTER: Yes.

20 MS. HERBSTER: Dr. Rothchild.

21 DR. ROTHCHILD: Yes.

22 MS. HERBSTER: Mr. McAndrew.

23 MR. MCANDREW: Yes.

24 MS. HERBSTER: Mr. Smurl.

25 MR. SMURL: Yes. I hereby declare

1 Item 7-C legally and lawfully adopted.

2 MR. VOLDENBERG: 7-D. FOR
3 CONSIDERATION BY THE COMMITTEE ON FINANCE - FOR
4 ADOPTION - FILE OF THE COUNCIL NO. 110, 2025 -
5 AMENDING FILE OF THE COUNCIL NO. 31, 2024, AN
6 ORDINANCE, AS AMENDED, ENTITLED "APPROVING AND
7 ACCEPTING THE CITY OF SCRANTON CAPITAL BUDGET,
8 WHICH INCLUDES A CAPITAL RESERVE FUND SPENDING
9 PLAN, FOR THE YEAR 2025 PURSUANT TO SECTION 904
10 OF THE CITY'S HOME RULE CHARTER AND FILE OF
11 COUNCIL NO. 11 OF 2024," BY ADDING A NEW LINE
12 ITEM IN THE 2025 CAPITAL BUDGET AND IN THE 2025
13 CAPITAL RESERVE FUND SPENDING PLAN FOR THE DOWN
14 PAYMENT TOWARD THE PURCHASE OF PROPERTY LOCATED
15 AT 334-336 NORTH WASHINGTON AVENUE IN SCRANTON,
16 PA.

17 MR. SMURL: What is the
18 recommendation of the Chairperson for the
19 Committee on Finance?

20 MR. KING: As Chairperson for the
21 Committee on Finance, I recommend final passage
22 of this resolution.

23 DR. ROTHCHILD: Second.

24 MR. SMURL: On the question?

25 MR. SCHUSTER: On the question, I've

1 made my opinions known on this for quite some
2 time even going back to past capital budgets.
3 You know, it was brought up tonight by Miss
4 Hodowanitz about rising utility costs that
5 weren't, you know, addressed in the -- in this
6 year's budget.

7 This resolution is to expand City
8 Hall. We've made major park improvements that
9 are going to need maintenance. We're going to
10 be doing a training center at the CTC. We have
11 the Serrenti Center. We have areas in the city
12 that are going to need to be maintained.

13 It's nice to have these things.
14 ARPA spending was used to do them. And we're
15 going to need to maintain them moving forward.
16 And I am afraid that expanding City Hall is
17 going to be something that sets us up for a
18 deficit down the road.

19 We also have a DPW contract that
20 hasn't been settled yet which is going to cause
21 expenditures to rise in the budget. With this
22 one here, you have both your expenditure side
23 rising because we're taking on more property.

24 We may be, you know, going up to 3
25 million dollars on renovations to that

1 building. And we're also taking away from the
2 revenue side by taking that building off the
3 tax rolls which compounds how this affects the
4 city budget. And for those reasons I will be
5 voting no for Item 7-D.

6 MR. SMURL: Thank you. Anyone else?

7 MR. MCANDREW: Yeah, I stated my
8 position anything related to this legislation
9 with the purchase of the building next door.
10 You know, so first of all, we're taking it off
11 the tax rolls. That's obvious.

12 But it's a commercial building. And
13 when developers buy a commercial building,
14 especially downtown, their thought process is
15 going to be revenue producing, all right?
16 Every square foot should produce revenue. If
17 you're a good businessman, that's a good
18 business plan, right?

19 That's not what's going to happen
20 next door. There's revenue they're going to --
21 on paper as of yet that's going to -- first, we
22 lose -- it's off the tax rolls. But there is
23 no clear plan what they're going to do with the
24 remainder of the building outside of the LIPS
25 Department and the command center.

1 It's a three-story building. It's
2 just going to cost us money. It's not going to
3 produce money. So that again, one of the many
4 reasons. And, you know, I haven't forgotten
5 and you shouldn't forget that, you know, the
6 conflict is the biggest reason why I am not in
7 favor of next door.

8 And that's the donation conflict
9 that, you know, that media doesn't really want
10 to entertain and that's okay, but that doesn't
11 make it right. So again, I'll continue with my
12 vote no on anything related to this in good
13 conscience.

14 MR. SMURL: Thank you, Mr. McAndrew.
15 Anyone else? Roll call please.

16 MS. HERBSTER: Mr. King.

17 MR. KING: Yes.

18 MS. HERBSTER: Mr. Schuster.

19 MR. SCHUSTER: No.

20 MS. HERBSTER: Dr. Rothchild.

21 DR. ROTHCHILD: Yes.

22 MS. HERBSTER: Mr. McAndrew.

23 MR. MCANDREW: No.

24 MS. HERBSTER: Mr. Smurl.

25 MR. SMURL: Yes. I hereby declare

1 Item 7-D legally and lawfully adopted.

2 MR. VOLDENBERG: 7-E. FOR
3 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
4 ADOPTION - RESOLUTION NO. 313, 2025 -
5 APPOINTMENT OF DANA FORCE, TO THE POSITION OF
6 PARKS AND RECREATION DIRECTOR.

7 MR. SMURL: As Chairperson for the
8 Committee on Rules, I recommend final passage
9 of Item 7-E.

10 DR. ROTHCHILD: Second.

11 MR. SCHUSTER: Second.

12 MR. SMURL: On the question? Roll
13 call, please.

14 MS. HERBSTER: Mr. King.

15 MR. KING: Yes.

16 MS. HERBSTER: Mr. Schuster.

17 MR. SCHUSTER: Yes.

18 MS. HERBSTER: Dr. Rothchild.

19 DR. ROTHCHILD: Yes.

20 MS. HERBSTER: Mr. McAndrew.

21 MR. MCANDREW: Yes.

22 MS. HERBSTER: Mr. Smurl.

23 MR. SMURL: Yes. I hereby declare
24 Item 7-E legally and lawfully adopted.

25 MR. VOLDENBERG: 7-F. FOR

1 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
2 ADOPTION - RESOLUTION NO. 314, 2025 -
3 APPOINTMENT OF JODI LA COE AS AN ALTERNATE
4 MEMBER OF THE HISTORICAL ARCHITECTURAL REVIEW
5 BOARD FOR A TERM FROM JANUARY 1, 2026 THROUGH
6 DECEMBER 31, 2030.

7 MR. SMURL: As Chairperson for the
8 Committee on Rules, I recommend final passage
9 of Item 7-F.

10 DR. ROTHCHILD: Second.

11 MR. SMURL: On the question? Roll
12 call, please.

13 MS. HERBSTER: Mr. King.

14 MR. KING: Yes.

15 MS. HERBSTER: Mr. Schuster.

16 MR. SCHUSTER: Yes.

17 MS. HERBSTER: Dr. Rothchild.

18 DR. ROTHCHILD: Yes.

19 MS. HERBSTER: Mr. McAndrew.

20 MR. MCANDREW: Yes.

21 MS. HERBSTER: Mr. Smurl.

22 MR. SMURL: Yes. I hereby declare
23 Item 7-F legally and lawfully adopted.

24 MR. VOLDENBERG: 7-G. FOR
25 CONSIDERATION BY THE COMMITTEE ON RULES - FOR

1 ADOPTION - RESOLUTION NO. 315, 2025 -
2 APPOINTMENT OF VITO SCOCOZZO AS AN ALTERNATE
3 MEMBER OF THE HISTORICAL ARCHITECTURAL REVIEW
4 BOARD FOR A TERM FROM JANUARY 1, 2026 THROUGH
5 DECEMBER 31, 2029.

6 MR. SMURL: As Chairperson for the
7 Committee on Rules, I recommend final passage
8 of Item 7-G.

9 MR. SCHUSTER: Second.

10 MR. SMURL: On the question? Roll
11 call, please.

12 MS. HERBSTER: Mr. King.

13 MR. KING: Yes.

14 MS. HERBSTER: Mr. Schuster.

15 MR. SCHUSTER: Yes.

16 MS. HERBSTER: Dr. Rothchild.

17 DR. ROTHCHILD: Yes.

18 MS. HERBSTER: Mr. McAndrew.

19 MR. MCANDREW: Yes.

20 MS. HERBSTER: Mr. Smurl.

21 MR. SMURL: Yes. I hereby declare
22 Item 7-G legally and lawfully adopted.

23 MR. VOLDENBERG: 7-H. FOR
24 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
25 ADOPTION - RESOLUTION NO. 316, 2025 - AMENDING

1 BOARD APPOINTMENT RESOLUTIONS TO BRING TERMS
2 INTO COMPLIANCE WITH STATE LAW FOR THE SCRANTON
3 PUBLIC LIBRARY AUTHORITY.

4 MR. SMURL: As Chairperson for the
5 Committee on Rules, I recommend final passage
6 of Item 7-H.

7 DR. ROTHCHILD: Second.

8 MR. SMURL: On the question? Roll
9 call, please.

10 MS. HERBSTER: Mr. King.

11 MR. KING: Yes.

12 MS. HERBSTER: Mr. Schuster.

13 MR. SCHUSTER: Yes.

14 MS. HERBSTER: Dr. Rothchild.

15 DR. ROTHCHILD: Yes.

16 MS. HERBSTER: Mr. McAndrew.

17 MR. MCANDREW: Yes.

18 MS. HERBSTER: Mr. Smurl.

19 MR. SMURL: Yes. I hereby declare
20 Item 7-H legally and lawfully adopted.

21 MR. VOLDENBERG: 7-I. FOR
22 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
23 ADOPTION - RESOLUTION NO. 317, 2025 -
24 REAPPOINTMENT OF GLYNIS JOHNS AS A MEMBER OF
25 THE SCRANTON PUBLIC LIBRARY AUTHORITY FOR A

1 TERM EXPIRING JANUARY 5, 2031.

2 MR. SMURL: As Chairperson for the
3 Committee on Rules, I recommend final passage
4 of Item 7-I.

5 DR. ROTHCHILD: Second.

6 MR. SMURL: On the question? Roll
7 call, please.

8 MS. HERBSTER: Mr. King.

9 MR. KING: Yes.

10 MS. HERBSTER: Mr. Schuster.

11 MR. SCHUSTER: Yes.

12 MS. HERBSTER: Dr. Rothchild.

13 DR. ROTHCHILD: Yes.

14 MS. HERBSTER: Mr. McAndrew.

15 MR. MCANDREW: Yes.

16 MS. HERBSTER: Mr. Smurl.

17 MR. SMURL: Yes. I hereby declare
18 Item 7-I legally and lawfully adopted.

19 MR. VOLDENBERG: 7-J. FOR
20 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
21 ADOPTION - RESOLUTION NO. 318, 2025 -
22 APPOINTMENT OF SHANNON ROCHE CUSICK AS A MEMBER
23 OF THE SCRANTON PUBLIC LIBRARY AUTHORITY TO
24 FILL THE SEAT INITIALLY HELD BY REES WARRING,
25 FOR A TERM BEGINNING IMMEDIATELY AND EXPIRING

1 JANUARY 5, 2031.

2 MR. SMURL: As Chairperson for the
3 Committee on Rules, I recommend final passage
4 of Item 7-J.

5 DR. ROTHCHILD: Second.

6 MR. SCHUSTER: Second.

7 MR. SMURL: On the question? Roll
8 call, please.

9 MS. HERBSTER: Mr. King.

10 MR. KING: Yes.

11 MS. HERBSTER: Mr. Schuster.

12 MR. SCHUSTER: Yes.

13 MS. HERBSTER: Dr. Rothchild.

14 DR. ROTHCHILD: Yes.

15 MS. HERBSTER: Mr. McAndrew.

16 MR. MCANDREW: Yes.

17 MS. HERBSTER: Mr. Smurl.

18 MR. SMURL: Yes. I hereby declare
19 Item 7-J legally and lawfully adopted.

20 MR. VOLDENBERG: 7-K. FOR
21 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
22 ADOPTION - RESOLUTION NO. 319, 2025 -
23 APPOINTMENT OF CONOR KELLY O'BRIEN AS A MEMBER
24 OF THE SCRANTON PUBLIC LIBRARY AUTHORITY TO
25 FILL THE SEAT INITIALLY HELD BY EMILY PERRY,

1 FOR A TERM BEGINNING IMMEDIATELY AND EXPIRING
2 JANUARY 2, 2028.

3 MR. SMURL: As Chairperson for the
4 Committee on Rules, I recommend final passage
5 of Item 7-K.

6 DR. ROTHCHILD: Second.

7 MR. SCHUSTER: Second.

8 MR. SMURL: On the question? Roll
9 call, please.

10 MS. HERBSTER: Mr. King.

11 MR. KING: Yes.

12 MS. HERBSTER: Mr. Schuster.

13 MR. SCHUSTER: Yes.

14 MS. HERBSTER: Dr. Rothchild.

15 DR. ROTHCHILD: Yes.

16 MS. HERBSTER: Mr. McAndrew.

17 MR. MCANDREW: Yes.

18 MS. HERBSTER: Mr. Smurl.

19 MR. SMURL: Yes. I hereby declare
20 Item 7-K legally and lawfully adopted.

21 MR. VOLDENBERG: 7-L. FOR
22 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
23 ADOPTION - RESOLUTION NO. 320, 2025 -
24 APPOINTMENT OF THOMAS MCLANE AS AN ALTERNATE
25 MEMBER OF THE ENVIRONMENTAL ADVISORY COUNCIL TO

1 FILL THE UNEXPIRED TERM OF LAUREL DOWNS,
2 BEGINNING IMMEDIATELY AND EXPIRING MAY 31,
3 2026.

4 MR. SMURL: As Chairperson for the
5 Committee on Rules, I recommend final passage
6 of Item 7-L.

7 MR. SCHUSTER: Second.

8 MR. SMURL: On the question? Roll
9 call, please.

10 MS. HERBSTER: Mr. King.

11 MR. KING: Yes.

12 MS. HERBSTER: Mr. Schuster.

13 MR. SCHUSTER: Yes.

14 MS. HERBSTER: Dr. Rothchild.

15 DR. ROTHCHILD: Yes.

16 MS. HERBSTER: Mr. McAndrew.

17 MR. MCANDREW: Yes.

18 MS. HERBSTER: Mr. Smurl.

19 MR. SMURL: Yes. I hereby declare
20 Item 7-L legally and lawfully adopted.

21 MR. VOLDENBERG: 7-M. FOR
22 CONSIDERATION BY THE COMMITTEE ON RULES - FOR
23 ADOPTION - RESOLUTION NO. 321, 2025 -
24 APPOINTMENT OF DORIS KOLOSKI AS A MEMBER OF THE
25 SCRANTON HUMAN RELATIONS COMMISSION TO REPLACE

1 MICHAEL VILLA FOR A TERM TO EXPIRE ON FEBRUARY
2 23, 2026.

3 MR. SMURL: As Chairperson for the
4 Committee on Rules, I recommend final passage
5 of Item 7-M.

6 MR. SCHUSTER: Second.

7 MR. SMURL: On the question? Roll
8 call, please.

9 MS. HERBSTER: Mr. King.

10 MR. KING: Yes.

11 MS. HERBSTER: Mr. Schuster.

12 MR. SCHUSTER: Yes.

13 MS. HERBSTER: Dr. Rothchild.

14 DR. ROTHCHILD: Yes.

15 MS. HERBSTER: Mr. McAndrew.

16 MR. MCANDREW: Yes.

17 MS. HERBSTER: Mr. Smurl.

18 MR. SMURL: Yes. I hereby declare
19 Item 7-M legally and lawfully adopted.

20 MR. VOLDENBERG: 7-N. After it's
21 read by City Clerk - FOR CONSIDERATION BY the
22 COMMITTEE ON RULES - FOR ADOPTION - RESOLUTION
23 NO. 301, 2025 - APPOINTMENT OF ANNA CAMPBELL AS
24 A MEMBER OF THE BOARD OF COMMISSIONERS OF THE
25 SCRANTON HOUSING AUTHORITY REPLACING

1 DEVENDRABHAI DAVE, WHOSE TERM EXPIRED OCTOBER
2 5, 2023. ANNA CAMPBELL'S FIVE-YEAR TERM WILL
3 BEGIN IMMEDIATELY AND EXPIRE ON SEPTEMBER 27,
4 2028.

5 MR. SMURL: As Chairperson for the
6 Committee on Rules, I recommend final passage
7 of Item 7-N.

8 DR. ROTHCHILD: Second.

9 MR. SMURL: On the question? Roll
10 call, please.

11 MS. HERBSTER: Mr. King.

12 MR. KING: Yes.

13 MS. HERBSTER: Mr. Schuster.

14 MR. SCHUSTER: No.

15 MS. HERBSTER: Dr. Rothchild.

16 DR. ROTHCHILD: Yes.

17 MS. HERBSTER: Mr. McAndrew.

18 MR. MCANDREW: No.

19 MS. HERBSTER: Mr. Smurl.

20 MR. SMURL: Yes. I hereby declare
21 Item 7-N legally and lawfully adopted.

22 MR. VOLDENBERG: 7-0. Previously
23 tabled - FOR CONSIDERATION BY THE COMMITTEE ON
24 COMMUNITY DEVELOPMENT - FOR ADOPTION --
25 RESOLUTION NO. 307, 2025 - ACCEPTING THE

1 RECOMMENDATION OF THE HISTORIC ARCHITECTURAL
2 REVIEW BOARD ("HARB") AND DENYING THE
3 CERTIFICATE OF APPROPRIATENESS FOR THE
4 INSTALLATION OF A FENCE AT 301 303 PENN AVENUE.

5 MR. SMURL: What is the
6 recommendation of the Chairperson for the
7 Committee on Community Development?

8 DR. ROTHCHILD: As Chairperson for
9 the Committee on Community Development, I
10 recommend a final vote on 7-0.

11 MR. SMURL: Do we have a second?

12 MR. KING: Second.

13 MR. SMURL: Second. On the
14 question? So based on the last week's public
15 hearing, the matter to should be remanded to
16 HARB with the rationale that the applicant may
17 not have been given the full opportunity to
18 present at HARB.

19 City Council should recommend that
20 HARB reconsider the application after giving
21 the participant the opportunity to present. I
22 understand that this will be happening at the
23 HARB meeting this Thursday, December 18th at
24 5:30 p.m.

25 So I will be voting no on this

1 legislation as we do not concur with the
2 Board's denial of certificate of
3 appropriateness at this time and prefer the
4 matter to be remanded to the HARB. Roll call,
5 please.

6 MS. HERBSTER: Mr. King.

7 MR. KING: No.

8 MS. HERBSTER: Mr. Schuster.

9 MR. SCHUSTER: No.

10 MS. HERBSTER: Dr. Rothchild.

11 DR. ROTHCHILD: No.

12 MS. HERBSTER: Mr. McAndrew.

13 MR. MCANDREW: No.

14 MS. HERBSTER: Mr. Smurl.

15 MR. SMURL: No. I hereby declare
16 Item 7-0 legally and lawfully denied.

17 MR. VOLDENBERG: 7-P. Previously
18 tabled - FOR CONSIDERATION BY THE COMMITTEE ON
19 RULES - FOR ADOPTION - RESOLUTION NO. 299,
20 2025 - REAPPOINTMENT OF MELINDA KROKUS AS AN
21 ALTERNATE MEMBER OF THE ENVIRONMENTAL ADVISORY
22 COUNCIL FOR A THREE-YEAR TERM EFFECTIVE JUNE 1,
23 2025 AND EXPIRING MAY 31, 2028.

24 MR. SMURL: As Chairperson for the
25 Committee on Rules, I recommend final passage

1 of Item 7-P.

2 MR. SCHUSTER: Second.

3 MR. SMURL: On the question? Roll
4 call, please.

5 MS. HERBSTER: Mr. King.

6 MR. KING: Yes.

7 MS. HERBSTER: Mr. Schuster.

8 MR. SCHUSTER: Yes.

9 MS. HERBSTER: Dr. Rothchild.

10 DR. ROTHCHILD: Yes.

11 MS. HERBSTER: Mr. McAndrew.

12 MR. MCANDREW: Yes.

13 MS. HERBSTER: Mr. Smurl.

14 MR. SMURL: Yes. I hereby declare
15 Item 7-P legally and lawfully adopted.

16 MR. VOLDENBERG: 7-Q. Formally
17 5-B - FOR CONSIDERATION BY THE COMMITTEE ON
18 COMMUNITY DEVELOPMENT - FOR ADOPTION -
19 RESOLUTION NO. 322, 2025 - RESOLUTION FOR PLAN
20 REVISION FOR THE NEW LAND DEVELOPMENT LOCATED
21 AT 1900 DOROTHY STREET.

22 MR. SMURL: What is the
23 recommendation of the Chairperson for the
24 Committee on Community Development?

25 DR. ROTHCHILD: As Chairperson for

1 the Committee on Community Development, I
2 recommend final passage of Item 7-Q.

3 MR. SCHUSTER: Second.

4 MR. SMURL: On the question? Roll
5 call, please.

6 MS. HERBSTER: Mr. King.

7 MR. KING: Yes.

8 MS. HERBSTER: Mr. Schuster.

9 MR. SCHUSTER: Yes.

10 MS. HERBSTER: Dr. Rothchild.

11 DR. ROTHCHILD: Yes.

12 MS. HERBSTER: Mr. McAndrew.

13 MR. MCANDREW: Yes.

14 MS. HERBSTER: Mr. Smurl.

15 MR. SMURL: Yes. I hereby declare
16 Item 7-Q legally and lawfully adopted.

17 MR. VOLDENBERG: EIGHTH ORDER. 8-A
18 Resolution No. 301, 2025.

19 MR. SMURL: This resolution was
20 taken from the table and place in Seventh Order
21 for a final vote this evening.

22 MR. VOLDENBERG: 8-B. Resolution
23 No. 307, 2025.

24 MR. SMURL: This was taken from the
25 table and placed in Seventh Order for a final

1 vote this evening.

2 MR. VOLDENBERG: 8-C. Resolution
3 No. 299, 2025.

4 MR. SMURL: This resolution was
5 taken from the table and placed in Seventh
6 Order for a final vote this evening.

7 If there's no further business, I'll
8 entertain a motion to adjourn.

9 MR. MCANDREW: Motion to adjourn.

10 MR. SMURL: Thank you, everyone.
11 This meeting is adjourned.

C E R T I F I C A T E

I hereby certify that the proceedings and evidence are contained fully and accurately in the notes taken by me of the above-cause and that this copy is a correct transcript of the same to the best of my ability.

A handwritten signature in cursive script that reads "Maria McCool".

Maria McCool, RPR
Official Court Reporter

(The foregoing certificate of this transcript does not apply to any reproduction of the same by any means unless under the direct control and/or supervision of the certifying reporter.)

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